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No. 19–7272. *MITCHELL v. DIAZ, SECRETARY, CALIFORNIA DEPARTMENT OF CORRECTIONS AND REHABILITATION, ET AL.* C. A. 9th Cir. Certiorari denied.

No. 19–7274. *BARTKO v. UNITED STATES.* C. A. 4th Cir. Certiorari denied. Reported below: 774 Fed. Appx. 815.

No. 19–7275. *BOYETT v. NEW MEXICO.* Dist. Ct. N. M., Valencia County. Certiorari denied.

No. 19–7276. *PUJAYASA v. UNITED STATES.* C. A. 11th Cir. Certiorari denied.

No. 19–7278. *COBB v. FLORIDA.* Dist. Ct. App. Fla., 5th Dist. Certiorari denied. Reported below: 279 So. 3d 137.

No. 19–7283. *EARLS v. NOVAK, WARDEN.* C. A. 7th Cir. Certiorari denied.

No. 19–7289. *GORDON v. CLINE, WARDEN.* C. A. 10th Cir. Certiorari denied. Reported below: 772 Fed. Appx. 712.

No. 19–7291. *ABRAHAM GUZMAN v. SANTORO, ACTING WARDEN.* C. A. 9th Cir. Certiorari denied.

No. 19–7292. *FRANKS v. COLLINS, WARDEN.* C. A. 6th Cir. Certiorari denied.

No. 19–7293. *BOWEN v. UNITED STATES.* C. A. 5th Cir. Certiorari denied. Reported below: 781 Fed. Appx. 367.

No. 19–7294. *KWANING v. UNITED STATES.* C. A. 4th Cir. Certiorari denied. Reported below: 786 Fed. Appx. 388.

No. 19–7298. *BELL v. FLORIDA.* Dist. Ct. App. Fla., 1st Dist. Certiorari denied. Reported below: 276 So. 3d 373.

No. 19–7304. *SALAZAR v. UNITED STATES.* C. A. 10th Cir. Certiorari denied. Reported below: 784 Fed. Appx. 579.

No. 19–7305. *SPRINGER v. UNITED STATES.* C. A. 4th Cir. Certiorari denied. Reported below: 790 Fed. Appx. 498.

No. 19–7307. *MOZ-AGUILAR v. UNITED STATES.* C. A. 3d Cir. Certiorari denied. Reported below: 790 Fed. Appx. 343.

No. 19–7313. *CRUTCHFIELD v. UNITED STATES* (Reported below: 785 Fed. Appx. 321); *JACKSON, AKA JONES v. UNITED*

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STATES; *KEMMERLING v. UNITED STATES*; *ROGERS v. UNITED STATES*; *FINCH v. UNITED STATES*; *NORRIS v. UNITED STATES*; *MANN v. UNITED STATES* (773 Fed. Appx. 308); *WILLIAMS v. UNITED STATES*; *MCKINNEY v. UNITED STATES*; *AMMONS v. UNITED STATES*; *LEMONS v. UNITED STATES*; *ROBERTS v. UNITED STATES*; *MERRIWEATHER v. UNITED STATES*; *HUGHES v. UNITED STATES*; *JUSTICE v. UNITED STATES*; *KEGLAR v. UNITED STATES*; *BOHANNON v. UNITED STATES*; *BEARDEN v. UNITED STATES*; *COX v. UNITED STATES*; *JONES v. UNITED STATES*; and *DAWSON v. UNITED STATES*. C. A. 6th Cir. Certiorari denied.

No. 19–7315. *WRIGHT v. UNITED STATES*. C. A. 2d Cir. Certiorari denied. Reported below: 945 F. 3d 677.

No. 19–7318. *YABLONSKY v. CALIFORNIA*. Sup. Ct. Cal. Certiorari denied.

No. 19–7323. *STOLLER v. UNITED STATES*. C. A. 7th Cir. Certiorari denied. Reported below: 772 Fed. Appx. 351.

No. 19–7324. *GREER v. UNITED STATES*. C. A. 6th Cir. Certiorari denied. Reported below: 780 Fed. Appx. 352.

No. 19–7325. *KANTETE v. UNITED STATES*. C. A. 3d Cir. Certiorari denied.

No. 19–7326. *ALLRED v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 942 F. 3d 641.

No. 19–7327. *MACLI v. UNITED STATES*. C. A. 11th Cir. Certiorari denied.

No. 19–7330. *HALDORSON v. UNITED STATES*. C. A. 7th Cir. Certiorari denied. Reported below: 941 F. 3d 284.

No. 19–7331. *CUNNINGHAM v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 780 Fed. Appx. 183.

No. 19–7332. *KING v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 780 Fed. Appx. 181.

No. 19–7334. *DIAZ-CESTARY v. UNITED STATES*. C. A. 1st Cir. Certiorari denied.

No. 19–7335. *PRODOEHL v. UNITED STATES*. C. A. 6th Cir. Certiorari denied. Reported below: 791 Fed. Appx. 527.

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No. 19–7336. *PENA v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 780 Fed. Appx. 193.

No. 19–7337. *PALMER v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 780 Fed. Appx. 179.

No. 19–7341. *WISEMAN v. UNITED STATES*. C. A. 6th Cir. Certiorari denied. Reported below: 932 F. 3d 411.

No. 19–7352. *GODOY-MACHUCA v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 772 Fed. Appx. 542.

No. 19–7356. *GRIFFIN v. INCH, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL.* C. A. 11th Cir. Certiorari denied. Reported below: 787 Fed. Appx. 564.

No. 19–7359. *GUZMAN-CORREA v. UNITED STATES*. C. A. 1st Cir. Certiorari denied.

No. 19–7363. *ROMANS v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 786 Fed. Appx. 891.

No. 19–7364. *SINGLETON v. UNITED STATES*. C. A. 6th Cir. Certiorari denied.

No. 19–7365. *ROBERTS v. INCH, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL.* C. A. 11th Cir. Certiorari denied.

No. 19–7367. *MAGANA-GONZALEZ v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 781 Fed. Appx. 615.

No. 19–7370. *BUENROSTRO-LOPEZ v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 781 Fed. Appx. 678.

No. 19–7371. *BENTLEY v. UNITED STATES*. C. A. 7th Cir. Certiorari denied.

No. 19–7381. *JONES v. UNITED STATES*. C. A. 11th Cir. Certiorari denied.

No. 19–7387. *MILES v. UNITED STATES*. C. A. 6th Cir. Certiorari denied.

No. 19–7392. *DAVIS v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 782 Fed. Appx. 246.

No. 19–7394. *GUILLEN v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 781 Fed. Appx. 980.

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No. 19–7396. *HARO-VERDUGO v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 748 Fed. Appx. 727.

No. 19–7400. *GLENN v. UNITED STATES*. C. A. 11th Cir. Certiorari denied.

No. 19–7404. *ROE v. UNITED STATES*. C. A. 6th Cir. Certiorari denied. Reported below: 790 Fed. Appx. 25.

No. 19–7408. *BOWMAN v. UNITED STATES*. C. A. 6th Cir. Certiorari denied.

No. 19–7416. *GRIFFIN v. UNITED STATES*. C. A. 2d Cir. Certiorari denied. Reported below: 794 Fed. Appx. 14.

No. 19–7417. *EDWARDS v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 767 Fed. Appx. 546.

No. 19–7422. *ANTONIO FAIRLEY v. MISSISSIPPI*. Sup. Ct. Miss. Certiorari denied. Reported below: 275 So. 3d 1012.

No. 19–7430. *BRYANT v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 776 Fed. Appx. 822.

No. 19–7433. *WILSON v. UNITED STATES*. C. A. 8th Cir. Certiorari denied. Reported below: 939 F. 3d 929.

No. 19–7434. *ZAMBRANO v. UNITED STATES*; and *CARTER v. UNITED STATES*. C. A. 9th Cir. Certiorari denied.

No. 19–7438. *SCOTT v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 941 F. 3d 677.

No. 19–7439. *SAMAAN v. UNITED STATES*. C. A. 8th Cir. Certiorari denied. Reported below: 937 F. 3d 1146.

No. 19–7440. *STRATTAN v. INCH, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL.* C. A. 11th Cir. Certiorari denied.

No. 18–349. *PATTERSON v. WALGREEN Co.* C. A. 11th Cir. Certiorari denied. Reported below: 727 Fed. Appx. 581.

JUSTICE ALITO, with whom JUSTICE THOMAS and JUSTICE GORSUCH join, concurring.

The petition in this case raises important questions about the meaning of Title VII’s prohibition of employment discrimination

“because of . . . religion.” 78 Stat. 255, 42 U.S.C. §§2000e–2(a)(1) and (2). For this reason and because of the Government’s responsibility to enforce Title VII, we asked for the views of the Solicitor General regarding review in this case, and the Solicitor General’s response to our request is helpful.

I agree with the most important point made in that brief, namely, that we should reconsider the proposition, endorsed by the opinion in *Trans World Airlines, Inc. v. Hardison*, 432 U.S. 63, 84 (1977), that Title VII does not require an employer to make any accommodation for an employee’s practice of religion if doing so would impose more than a *de minimis* burden. Title VII prohibits employment discrimination against an individual “because of such individual’s . . . religion,” §§2000e–2(a)(1) and (2), and the statute defines “religion” as “includ[ing] all aspects of religious observance and practice, as well as belief, unless an employer demonstrates that he is *unable to reasonably accommodate* to an employee’s or prospective employee’s religious observance or practice *without undue hardship* on the conduct of the employer’s business.” §2000e(j) (emphasis added). As the Solicitor General observes, *Hardison*’s reading does not represent the most likely interpretation of the statutory term “undue hardship”; the parties’ briefs in *Hardison* did not focus on the meaning of that term; no party in that case advanced the *de minimis* position; and the Court did not explain the basis for this interpretation. See Brief for United States as *Amicus Curiae* 19–21. I thus agree with the Solicitor General that we should grant review in an appropriate case to consider whether *Hardison*’s interpretation should be overruled.*

The Solicitor General also agrees that two other issues raised in the petition are important, specifically, (1) whether Title VII may require an employer to provide a partial accommodation for an employee’s religious practices even if a full accommodation would impose an undue hardship, and (2) whether an employer can show that an accommodation would impose an undue hardship based on speculative harm. But the Solicitor General does not interpret the decision below as turning on either of those ques-

*In addition, as JUSTICE THOMAS has pointed out, *Hardison* did not apply the current form of Title VII, but instead an Equal Employment Opportunity Commission guideline that predated the 1972 amendments defining the term “religion.” *EEOC v. Abercrombie & Fitch Stores, Inc.*, 575 U.S. 768, 787, n. (2015) (opinion concurring in part and dissenting in part).

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tions. While I am less sure about this interpretation, I agree in the end that this case does not present a good vehicle for revisiting *Hardison*. I therefore concur in the denial of certiorari, but I reiterate that review of the *Hardison* issue should be undertaken when a petition in an appropriate case comes before us.

No. 19–402. BALDWIN ET UX. v. UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 921 F.3d 836.

JUSTICE THOMAS, dissenting.

Under *Chevron* deference, courts generally must adopt an agency’s interpretation of an ambiguous statute if that interpretation is “reasonable.” *Chevron U. S. A. Inc. v. Natural Resources Defense Council, Inc.*, 467 U.S. 837, 844 (1984). Usually, the agency interprets the statute before any court has considered the question. But sometimes, the agency advances an interpretation after a court has already weighed in. In the latter instance, we have held that it “follows from *Chevron*” that a court must abandon its previous interpretation in favor of the agency’s interpretation unless the prior court decision holds that the statute is unambiguous. *National Cable & Telecommunications Assn. v. Brand X Internet Services*, 545 U.S. 967, 982 (2005).

This petition asks us to reconsider *Brand X*. In 1992, the Ninth Circuit interpreted a deadline for requesting a refund from the Internal Revenue Service (IRS). See *Anderson v. United States*, 966 F.2d 487, 489 (interpreting 26 U.S.C. § 7502). Nineteen years later—and two months after petitioners claim to have mailed their paperwork to the IRS—the Treasury Department adopted a different interpretation through an informal rulemaking. See 26 CFR § 301.7502–1(e)(2)(i) (2012). When petitioners sued the IRS to recover their refund, the Ninth Circuit followed *Brand X*, deferred to the agency’s new interpretation, and rejected petitioners’ claim. 921 F.3d 836, 843 (2019).

Although I authored *Brand X*, “it is never too late to ‘surrender[]’ former views to a better considered position.” *South Dakota v. Wayfair, Inc.*, 585 U.S. 162, 190 (2018) (THOMAS, J., concurring) (quoting *McGrath v. Kristensen*, 340 U.S. 162, 178 (1950) (Jackson, J., concurring)). *Brand X* appears to be inconsistent with the Constitution, the Administrative Procedure Act (APA), and traditional tools of statutory interpretation. Because I would revisit *Brand X*, I respectfully dissent from the denial of certiorari.

I

My skepticism of *Brand X* begins at its foundation—*Chevron* deference. In 1984, a bare quorum of six Justices decided *Chevron*. The Court reasoned that “if [a] statute is silent or ambiguous with respect to the specific issue, the question for the court is whether the agency’s answer is based on a permissible construction of the statute.” 467 U.S., at 843. The decision rests on the fiction that silent or ambiguous statutes are an implicit delegation from Congress to agencies. *Id.*, at 843–844. *Chevron* is in serious tension with the Constitution, the APA, and over 100 years of judicial decisions.¹

A

Chevron compels judges to abdicate the judicial power without constitutional sanction. The Vesting Clause of Article III gives “[t]he judicial Power of the United States” to “one supreme Court, and . . . such inferior Courts as the Congress may from time to time ordain and establish.” § 1. As I have previously explained, “the judicial power, as originally understood, requires a court to exercise its independent judgment in interpreting and expounding upon the laws.” *Perez v. Mortgage Bankers Assn.*, 575 U.S. 92, 119 (2015) (opinion concurring in judgment). The Framers anticipated that legal texts would sometimes be ambiguous, and they understood the judicial power “to include the power to resolve these ambiguities over time” in judicial proceedings. *Ibid.* The Court’s decision in *Chevron*, however, “precludes judges from exercising that judgment.” *Michigan v. EPA*, 576 U.S. 743, 761 (2015) (THOMAS, J., concurring); see also *Perez*, *supra*, at 119 (THOMAS, J., concurring in judgment).

Chevron also gives federal agencies unconstitutional power. Executive agencies enjoy only “the executive Power.” Art. II, § 1. But when they receive *Chevron* deference, they arguably exercise “[t]he judicial Power of the United States,” which is

¹ As I have previously noted, *Chevron* arguably sets out an “interpretive tool[]” and so may not be entitled to *stare decisis* treatment. *Perez v. Mortgage Bankers Assn.*, 575 U.S. 92, 114, n. 1 (2015) (opinion concurring in judgment) (citing C. Nelson, Statutory Interpretation 701 (2011)). The same can be said of *National Cable & Telecommunications Assn. v. Brand X Internet Services*, 545 U.S. 967 (2005).

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vested in the courts. *Chevron* cannot be salvaged by saying instead that agencies are “engaged in the ‘formulation of policy.’” *Michigan, supra*, at 762 (THOMAS, J., concurring) (quoting *Chevron, supra*, at 843). If that is true, then agencies are unconstitutionally exercising “legislative Powers” vested in Congress. See Art. I, § 1.

This apparent abdication by the Judiciary and usurpation by the Executive is not a harmless transfer of power. The Constitution carefully imposes structural constraints on all three branches, and the exercise of power free of those accompanying restraints subverts the design of the Constitution’s ratifiers. The Constitution shielded judges from both the “external threats” of politics and “the ‘internal threat’ of ‘human will’” by providing tenure and salary protections during good behavior and by insulating judges from the process of writing the laws they are asked to interpret. *Perez, supra*, at 120 (THOMAS, J., concurring in judgment) (quoting P. Hamburger, *Law and Judicial Duty*, 508 (2008)). The Constitution also restricted the legislative power by dividing it between two Houses that check each other, one of which was kept close to the people through biennial elections. See *Department of Transportation v. Association of American Railroads*, 575 U.S. 43, 74 (2015) (THOMAS, J., concurring in judgment). When the Executive exercises judicial or legislative power, however, it does so largely free of these safeguards. The Executive is not insulated from external threats, and it is by definition an agent of will, not judgment. The Executive also faces election less frequently than do Members of the House, and its power is vested in a single person.

Perhaps worst of all, *Chevron* deference undermines the ability of the Judiciary to perform its checking function on the other branches. The Founders expected that the Federal Government’s powers would remain separated—and the people’s liberty secure—only if the branches could check each other. The Judiciary’s checking power is its authority to apply the law in cases or controversies properly before it. See *Michigan, supra*, at 763, n. 1 (THOMAS, J., concurring); *Perez, supra*, at 124–126 (THOMAS, J., concurring in judgment). When the Executive is free to dictate the outcome of cases through erroneous interpretations, the courts cannot check the Executive by applying the correct interpretation of the law.

B

Chevron deference appears to be inappropriate in many cases for another reason: It is likely contrary to the APA, “which [*Chevron*] did not even bother to cite.” *United States v. Mead Corp.*, 533 U.S. 218, 241 (2001) (Scalia, J., dissenting). The APA provides that, “[t]o the extent necessary to decision and when presented, the reviewing court shall decide all relevant questions of law, interpret constitutional and statutory provisions, and determine the meaning or applicability of the terms of an agency action.” 5 U.S.C. § 706. When the APA was enacted, the meaning of a statute was considered a question of law. The Court recognized as much in *Trust of Bingham v. Commissioner*, 325 U.S. 365 (1945), writing that questions about “the meaning of the words of [the] statute” were “questions of law,” *id.*, at 371. See also Brown, Fact and Law in Judicial Review, 56 Harv. L. Rev. 899, 901 (1943); J. Thayer, Preliminary Treatise on Evidence at the Common Law 193 (1898). Moreover, § 706 “places the court’s duty to interpret statutes on an equal footing with its duty to interpret the Constitution, and courts never defer to agencies in reading the Constitution.” Duffy, Administrative Common Law in Judicial Review, 77 Texas L. Rev. 113, 194 (1998). Finally, the deferential standards of review elsewhere in the APA—which require courts to “hold unlawful and set aside agency action, findings, and conclusions found to be . . . arbitrary, capricious, an abuse of discretion [or] unsupported by substantial evidence,” § 706(2)—do not mention statutory interpretation. See *id.*, at 194. Even if *Chevron* raised no constitutional concerns, these statutory arguments give rise to serious doubts about *Chevron*’s legitimacy.

C

In the past, I have left open the possibility that “there is some unique historical justification for deferring to federal agencies.” *Michigan, supra*, at 763 (concurring opinion). It now appears to me that there is no such special justification and that *Chevron* is inconsistent with accepted principles of statutory interpretation from the first century of the Republic.

For most of the 19th century, there was no general federal-question jurisdiction. Instead, review was available in a common-law action, under certain limited grants of federal-question jurisdiction, or by extraordinary writ (such as a writ of

mandamus). Bamzai, *The Origins of Judicial Deference to Executive Interpretation*, 126 Yale L. J. 908, 948 (2017).

When 18th- and 19th-century courts decided questions of statutory interpretation in common-law actions or under federal-question jurisdiction, they did not apply anything resembling *Chevron* deference. Judges interpreted statutes according to their independent judgment. For example, in a lawsuit involving a federal land patent, the Court simply “inquire[d] whether the statute, rightly construed, defeated [the respondent’s] otherwise perfect right to the patent.” *Johnson v. Towsley*, 13 Wall. 72, 88 (1871); see also *id.*, at 91. When courts disagreed with the Executive’s interpretation, they gave no weight to it. See *United States v. Dickson*, 15 Pet. 141, 161–162 (1841) (Story, J., for the Court).

Courts did apply traditional interpretive canons that accorded respect to certain contemporaneous, consistent interpretations of statutes by executive officers. See Bamzai, *supra*, at 933–947. In perhaps its most famous articulation, the Court wrote that “[i]n the construction of a doubtful and ambiguous law, the contemporaneous construction of those who were called upon to act under the law, and were appointed to carry its provisions into effect, is entitled to very great respect.” *Edwards’ Lessee v. Darby*, 12 Wheat. 206, 210 (1827). The Court continued to apply this approach throughout the 19th century. See, e.g., *United States v. State Bank of N. C.*, 6 Pet. 29, 39–40 (1832) (“[T]he construction which we have given to the terms of the act . . . is that which is understood to have been practically acted upon by the government, as well as by individuals, ever since its enactment. . . . We think the practice was founded in the true exposition of the terms and intent of the act: but if it were susceptible of some doubt, so long an acquiescence in it would justify us in yielding to it as a safe and reasonable exposition”); *Surgett v. Lapice*, 8 How. 48, 68 (1850) (similar). And when the interpretation “has not been uniform,” the Court declined to give weight to executive interpretations. *Merritt v. Cameron*, 137 U.S. 542, 552 (1890).²

²The phrasing and substance of these canons vary, and I express no opinion on their details, such as whether congressional acquiescence in a long-standing interpretation was required. See P. Hamburger, *Is Administrative Law Unlawful?* 583, n. 24 (2014).

This practice is consistent with the more general principle of “liquidation,” in which consistent and longstanding interpretations of an ambiguous text could fix its meaning. See *Stuart v. Laird*, 1 Cranch 299, 309 (1803) (“[I]t is sufficient to observe, that practice and acquiescence under [a statute] for a period of several years, commencing with the organization of the judicial system, affords an irrefutable answer, and has indeed fixed the construction”); see also *Respublica v. Roberts*, 2 Dall. 124, 125 (Pa. 1791); *Minnis v. Echols*, 12 Va. 31, 36 (1808) (opinion of Roane, J.); *Packard v. Richardson*, 17 Mass. 122, 144 (1821); Nelson, *Stare Decisis and Demonstrably Erroneous Precedents*, 87 Va. L. Rev. 1, 14–21 (2001). *Chevron* is not a species of liquidation because it “give[s] administrative agencies substantially more freedom to depart from settled understandings.” Nelson, *Originalism and Interpretive Conventions*, 70 U. Chi. L. Rev. 519, 552, n. 137 (2003). But the existence of liquidation by nonexecutive actors confirms that “the pedigree and contemporaneity of the interpretation” mattered in the early Republic, not the mere fact that it was an interpretation by the Executive. Bamzai, *supra*, at 916.

The standard applied in mandamus cases might appear to be a forerunner of *Chevron* deference, but the comparison dissipates upon close examination. In mandamus cases, courts generally would not second-guess legal interpretations made “in the discharge of any official duty, partaking in any respect of an executive character,” but they would “enforce the performance of a mere ministerial act.” *Kendall v. United States ex rel. Stokes*, 12 Pet. 524, 610 (1838). The “application of th[is] mandamus standard was a consequence solely of the form of relief requested,” not a requirement that courts defer to the Executive’s reasonable interpretation of a statute. Bamzai, 126 Yale L. J., at 958. The Court even acknowledged in mandamus cases that “[i]f a suit should come before this Court, which involved the construction of any of these laws, the Court certainly would not be bound to adopt the construction given by the head of a department.” *Decatur v. Paulding*, 14 Pet. 497, 515 (1840); see also *United States ex rel. Dunlap v. Black*, 128 U.S. 40, 48–49 (1888).

The rule in *Chevron* thus differs from historical practice in at least four ways. First, it requires deference regardless of whether the interpretation began around the time of the statute’s enactment (and thus might reflect the statute’s original meaning). Second, it requires deference regardless of whether an agency has

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changed its position. Third, it requires deference regardless of whether the agency's interpretation has the sanction of long practice. And fourth, it applies in actions in which courts historically have interpreted statutes independently.

II

Even if *Chevron* deference were sound, I have become increasingly convinced that *Brand X* was still wrongly decided because it is even more inconsistent with the Constitution and traditional tools of statutory interpretation than *Chevron*.

A

By requiring courts to overrule their own precedent simply because an agency later adopts a different interpretation of a statute, *Brand X* likely conflicts with Article III of the Constitution. The Constitution imposes a duty on judges to exercise the judicial power. See *supra*, at 1232. That power is to be exercised “for the purpose of giving effect to the will of the Legislature; or, in other words, to the will of the law.” *Osborn v. Bank of United States*, 9 Wheat. 738, 866 (1824) (Marshall, C. J., for the Court). But *Brand X* directs courts to give effect to the will of the Executive by depriving judges of the ability to follow their own precedent. This rule raises grave Article III concerns, no less than if it allowed judges to substitute their policy preferences for the original meaning of a statute.

The Article III duty to decide cases even when the Executive disagrees with the conclusion has long been recognized by this Court. In a statutory interpretation case in 1841, the Court acknowledged “the uniform construction given to the act . . . ever since its passage, by the Treasury Department,” but stated that “if it is not in conformity to the true intendment and provisions of the law, it cannot be permitted to conclude the judgment of a Court of justice.” *Dickson*, 15 Pet., at 161. Justice Story, writing for the Court, admonished that

“it is not to be forgotten, that ours is a government of laws, and not of men; and that the Judicial Department has imposed upon it, by the Constitution, the solemn duty to interpret the laws, in the last resort; and however disagreeable that duty may be, in cases where its own judgment shall differ from that of other high functionaries, it is not at liberty to surrender, or to waive it.” *Id.*, at 162.

Brand X is in serious tension with this understanding of Article III.

Brand X takes on the constitutional deficiencies of *Chevron* and exacerbates them. *Chevron* requires judges to surrender their independent judgment to the will of the Executive, see *supra*, at 1232–1233; *Brand X* forces them to do so despite a controlling precedent. *Chevron* transfers power to agencies, see *supra*, at 1232; *Brand X* gives agencies the power to effectively overrule judicial precedents. *Chevron* withdraws a crucial check on the Executive from the separation of powers, see *supra*, at 1233; *Brand X* gives the Executive the ability to neutralize a previously exercised check by the Judiciary. But, with this said, there is no need to question *Chevron* in order to recognize the heightened constitutional harms wrought by *Brand X*.

B

Brand X also seems to be strongly at odds with traditional tools of statutory interpretation. As discussed above, early federal courts afforded weight to longstanding executive interpretations of a law that were made contemporaneously with its passage and that were uniformly maintained. See *supra*, at 1234–1237. *Brand X*, however, mandates deference to an executive interpretation that is neither contemporaneous nor settled.

Under traditional rules of statutory interpretation, this Court declined to give weight to late-arising or inconsistent statutory interpretations by the Executive. In *Merritt v. Cameron*, for example, the Court rejected an interpretation offered by the Executive because there was no “long and uninterrupted . . . departmental construction . . . as will bring the case within the rule announced at an early day in this court, and followed in very many cases.” 137 U.S., at 552; see also *United States v. Alabama Great Southern R. Co.*, 142 U.S. 615, 621 (1892). Even if only to resolve the tension with our traditional approach to statutory interpretation, we should revisit *Brand X*.

III

Regrettably, *Brand X* has taken this Court to the precipice of administrative absolutism. Under its rule of deference, agencies are free to invent new (purported) interpretations of statutes and then require courts to reject their own prior interpretations. *Brand X* may well follow from *Chevron*, but in so doing, it poignantly lays bare the flaws of our entire executive-deference juris-

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prudence. Even if the Court is not willing to question *Chevron* itself, at the very least, we should consider taking a step away from the abyss by revisiting *Brand X*.

No. 19–411. REED *v.* TEXAS. Ct. Crim. App. Tex. Certiorari denied.

Statement of JUSTICE SOTOMAYOR respecting the denial of certiorari.

On April 23, 1996, the body of 19-year-old Stacey Lee Stites, a white woman, was found in the brush near a road in Bastrop County, Texas. The last person known to have seen Stites was her fiancé, a white man and local police officer named Jimmy Fennell. Vaginal swabs collected from Stites’ body revealed three intact spermatozoa. The DNA from that sample matched that of petitioner Rodney Reed, a black man, who initially denied knowing Stites but eventually admitted that they had been having an affair. The State later charged Reed with Stites’ murder. Aside from the DNA match, the State found no other physical evidence implicating Reed.

At trial, much of the State’s case centered on the estimated time of Stites’ death and the estimated time during which the spermatozoa could have been deposited. Fennell—waiving a prior invocation of the Fifth Amendment—testified that he and Stites had watched television together on the evening of April 22 before going to sleep, and that Stites had left for work at her usual time around 3 a.m. on April 23. Using expert testimony, the State pinpointed her time of death at sometime around 3 a.m. or shortly thereafter on April 23. Another expert for the State testified that spermatozoa remains intact inside a vaginal tract for at most 26 hours, implying that the three spermatozoa found on the vaginal swab at 11 p.m. on April 23 had been deposited no earlier than the night before. This evidence thus tended to inculcate Reed (by suggesting that he must have had sex with Stites very soon before her death) and exculpate Fennell (by indicating that Stites died after Fennell claimed to have seen her last). The jury convicted Reed of murder and sentenced him to death.

I

Strenuously maintaining his innocence, Reed has repeatedly sought habeas relief in Texas state courts over the last two decades.

In recent state habeas applications—his eighth and ninth overall—Reed came forward with evidence potentially exculpating him from the murder of Stites. Witnesses unrelated to Reed but known to Stites corroborated Reed’s claim that he and Stites were in a clandestine relationship before her death. One of the State’s key experts declared that his trial testimony regarding Stites’ time of death “should not have been used at trial as an accurate statement of when Ms. Stites died.” App. to Pet. for Cert 198a. Other experts reexamined the forensic evidence and concluded that Stites died not on the morning of April 23, but on the evening of April 22—when Fennell claimed to have been with her. As one expert put it, the way in which the blood had settled in Stites’ body when police found her “ma[de] it medically and scientifically impossible” that Stites had died sometime around 3 a.m. on April 23, as the State had posited at trial. *Id.*, at 203a. Experts also refuted trial testimony that spermatozoa cannot remain intact within the vaginal tract for more than 26 hours. The scientific literature, they insisted, is pellucid that spermatozoa can remain intact for days. That so few were recovered intact, one expert averred, suggests that the spermatozoa had not been deposited recently. Finally, Curtis Davis—Fennell’s friend and fellow police officer at the time of Stites’ murder—testified that, shortly after Stites was reported missing, Fennell conveyed an account of his whereabouts on April 22 that differed sharply from Fennell’s trial testimony.

That considerable body of evidence formed the foundation of the claims in the instant petition for a writ of certiorari, which Reed filed in September 2019. Reed argued that the State violated *Brady v. Maryland*, 373 U.S. 83 (1963), by withholding Officer Davis’ account, which materially conflicted with Fennell’s account at trial. He also claimed that the State, in violation of the Due Process Clause, presented false scientific testimony about when Stites died and when the spermatozoa found on the vaginal swab had been deposited—both critical components of the State’s theory of Reed’s guilt. Finally, Reed asserted that he is actually innocent of killing Stites.

On November 11, 2019, while that petition for a writ of certiorari was pending before this Court, Reed filed in Texas trial court another state habeas application—his tenth overall. In it, Reed identified evidence that he discovered since the Texas courts de-

nied his prior state habeas applications, including the eighth and ninth applications pending review in this Court.

The centerpiece of that newly discovered evidence was an alleged prison confession by Fennell to the murder of Stites. In 2008, Fennell was sentenced to 10 years' imprisonment for kidnapping and sexually assaulting a woman he had encountered while on police duty. For a period of time, Fennell was incarcerated in the same facility as a man named Arthur Snow, Jr., then affiliated with the Aryan Brotherhood. In a sworn affidavit signed late October 2019, Snow recounted a conversation in which Fennell said that his ex-fiancée "had been sleeping around with a black man behind his back." "Toward the end of the conversation," Snow attested, "[Fennell] said confidently, 'I had to kill my n***r-loving fiancé[e].'" Snow's "impression was that [Fennell] felt safe, even proud, sharing th[at] information with [Snow] because [Snow] was a member of the Aryan Brotherhood." Plaintiff's Advisory Regarding Federal Habeas Filings in *Reed v. Goertz*, No. 19-cv-00794 (WD Tex., Nov. 14, 2019), Doc. 29-2, p. 108.

Other newly discovered evidence highlighted in Reed's tenth state habeas application included multiple sworn accounts that, according to Reed, tend to inculcate Fennell for Stites' murder. Three were by Bastrop County police officers at the time of Stites' murder (none Officer Davis): One officer averred that, a month before the murder, Fennell told him that Stites was "f***ing a n***r." *Id.*, at 67. Another officer attested that at Stites' funeral, he witnessed Fennell say to Stites' body something along the lines of, "You got what you deserved." *Id.*, at 101. The third officer stated that Stites' colleagues told him that they would warn Stites when Fennell came to her workplace so that Stites could avoid Fennell. And still other individuals with no relation to Reed provided accounts that Stites and Fennell had a tumultuous, and seemingly violent, relationship just before Stites' death.

Based on that newly discovered evidence, Reed argued in his tenth state habeas application that the State violated *Brady* by withholding the three police-officer accounts of Fennell's allegedly suspicious behavior. Reed also contended that the State presented false testimony when Fennell testified at trial that he did not kill Stites: That testimony, Reed claimed, was belied by Fennell's confession to Snow. Finally, Reed reasserted his actual

innocence. In doing so, Reed invoked not only the evidence newly presented in the tenth state habeas application but also all evidence of actual innocence raised in prior state habeas applications that the Texas courts denied.

On November 15, 2019—five days before Reed’s scheduled execution date and while the instant petition for a writ of certiorari remained pending in this Court—the Texas Court of Criminal Appeals stayed Reed’s execution. The Court of Criminal Appeals concluded that Reed’s *Brady*, false-testimony, and actual-innocence claims in the tenth state habeas application satisfied the state procedural requirements for going forward. It thus remanded those claims to the trial court for further development.

II

The Court today denies Reed’s petition for a writ of certiorari arising from his eighth and ninth state habeas applications. But Reed’s proceedings on his recently filed tenth application of course remain pending in the Texas courts. Texas, importantly, has recognized that the incarceration or execution of the actually innocent violates the Due Process Clause of the Fourteenth Amendment. See *Ex parte Elizondo*, 947 S. W. 2d 202, 204–205 (Tex. Crim. App. 1996); *State ex rel. Holmes v. Honorable Court of Appeals for Third Dist.*, 885 S. W. 2d 389, 397–398 (Tex. Crim. App. 1994). An innocence claim in Texas thus may serve as a freestanding, substantive basis for habeas relief, see *Elizondo*, 947 S. W. 2d, at 205, not merely a procedural gateway to reach an underlying claim for habeas relief. That means that the Texas courts will now consider on the merits—for the first time in Reed’s decades-long effort to prove his innocence—whether Reed is indeed innocent of murdering Stacey Lee Stites.

It goes without saying that, should the Texas courts deny Reed relief in his tenth state habeas proceeding, today’s decision to decline review in no way prejudices Reed’s ability to seek review of that hypothetical future decision. So, too, does it go without saying that today’s decision implies nothing about the merits of either the underlying eighth and ninth state applications or the tenth application pending in the Texas trial court (which, of course, rests on a different overall body of evidence). See *Maryland v. Baltimore Radio Show, Inc.*, 338 U. S. 912, 919 (1950) (Frankfurter, J., respecting denial of certiorari) (“[T]his Court has rigorously insisted that . . . a denial [of a petition for a writ of

certiorari] carries with it no implication whatever regarding the Court's views on the merits of a case which it has declined to review").

I assume, moreover, that in evaluating a claim of actual innocence as a substantive basis for habeas relief, habeas courts do not blind themselves to evidence of actual innocence presented in prior habeas applications. When confronted with actual-innocence claims asserted as a procedural gateway to reach underlying grounds for habeas relief, habeas courts consider all available evidence of innocence. *House v. Bell*, 547 U.S. 518, 537–538 (2006) (federal habeas courts evaluating gateway actual-innocence claims “must consider “all the evidence,” old and new, incriminating and exculpatory” (quoting *Schlup v. Delo*, 513 U.S. 298, 328 (1995))); *Ex parte Reed*, 271 S. W. 3d 698, 733–734 (Tex. Crim. App. 2008) (Texas habeas courts must do the same (citing *House*, 547 U.S., at 537–538)). That includes evidence “offered in . . . prior [habeas] applications.” *Reed*, 271 S. W. 3d, at 734.

Presumably, the same principle informs a habeas court's evaluation of a substantive claim of actual innocence. If evidence of actual innocence presented in a habeas applicant's earlier habeas applications otherwise satisfies the requirements applicable to a substantive innocence claim, that evidence should not, in my view, be cast off merely because the applicant identified it for the first time in an earlier habeas application.

* * *

In the instant petition for a writ of certiorari, Reed has presented a substantial body of evidence that, if true, casts doubt on the veracity and scientific validity of the evidence on which Reed's conviction rests. Misgivings this ponderous should not be brushed aside even in the least consequential of criminal cases; certainly they deserve sober consideration when a capital conviction and sentence hang in the balance. In the pending tenth state habeas proceeding, however, Reed has identified still more evidence that he says further demonstrates his innocence. It is no trivial moment that the Texas courts have concluded that Reed has presented a substantive claim of actual innocence warranting further consideration and development on the merits. While the Court today declines to review the instant petition, it of course does not pass on the merits of Reed's innocence or close the door to future review.

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In my view, there is no escaping the pall of uncertainty over Reed's conviction. Nor is there any denying the irreversible consequence of setting that uncertainty aside. But I remain hopeful that available state processes will take care to ensure full and fair consideration of Reed's innocence—and will not allow the most permanent of consequences to weigh on the Nation's conscience while Reed's conviction remains so mired in doubt.

No. 19–440. *NORTHERN TRUST CORP. ET AL. v. BANKS ET AL.* C. A. 9th Cir. Motion of American Bankers Association et al. for leave to file brief as *amici curiae* granted. Certiorari denied. Reported below: 929 F. 3d 1046.

No. 19–447. *PUNTENNEY ET AL. v. IOWA UTILITIES BOARD ET AL.* Sup. Ct. Iowa. Certiorari denied. JUSTICE ALITO took no part in the consideration or decision of this petition. Reported below: 928 N. W. 2d 829.

No. 19–494. *MORGAN v. WASHINGTON.* Sup. Ct. Wash. Motion of Washington Association of Criminal Defense Lawyers et al. for leave to file brief as *amici curiae* granted. Certiorari denied. Reported below: 193 Wash. 2d 365, 440 P. 3d 136.

No. 19–564. *MICHIGAN v. BECK.* Sup. Ct. Mich. Motion of respondent for leave to proceed *in forma pauperis* granted. Certiorari denied. Reported below: 504 Mich. 605, 939 N. W. 2d 213.

No. 19–692. *DEO v. CALIFORNIA.* Ct. App. Cal., 4th App. Dist., Div. 1. Motion of California Land Title Association for leave to file brief as *amicus curiae* granted. Certiorari denied. Reported below: 35 Cal. App. 5th 646, 247 Cal. Rptr. 3d 544.

No. 19–804. *XIU JIAN SUN v. TRUMP, PRESIDENT OF THE UNITED STATES, ET AL.* C. A. D. C. Cir. Certiorari denied. JUSTICE KAVANAUGH took no part in the consideration or decision of this petition.

No. 19–6818. *WARD v. UNITED STATES.* C. A. 10th Cir. Certiorari denied. Reported below: 785 Fed. Appx. 556.

JUSTICE SOTOMAYOR, with whom JUSTICE GINSBURG joins, dissenting.

I dissent for the reasons set out in *Brown v. United States*, 586 U. S. 953 (2018) (SOTOMAYOR, J., dissenting from denial of certiorari).

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No. 19–6832. *LACY v. UNITED STATES*. C. A. 9th Cir. Certiorari denied.

JUSTICE SOTOMAYOR, with whom JUSTICE GINSBURG joins, dissenting.

I dissent for the reasons set out in *Brown v. United States*, 586 U. S. 953 (2018) (SOTOMAYOR, J., dissenting from denial of certiorari).

No. 19–7046. *JONES v. OVERSTREET, COMMISSIONER, ET AL.* C. A. 5th Cir. Certiorari denied. THE CHIEF JUSTICE took no part in the consideration or decision of this petition.

No. 19–7114. *FINLEY v. UNITED STATES*. C. A. 5th Cir. Certiorari denied.

JUSTICE SOTOMAYOR, with whom JUSTICE GINSBURG joins, dissenting.

I dissent for the reasons set out in *Brown v. United States*, 586 U. S. 953 (2018) (SOTOMAYOR, J., dissenting from denial of certiorari).

No. 19–7119. *BELL v. RANSOM, SUPERINTENDENT, STATE CORRECTIONAL INSTITUTION AT DALLAS, ET AL.* C. A. 3d Cir. Certiorari denied. JUSTICE ALITO took no part in the consideration or decision of this petition.

No. 19–7177. *MILLER v. GIBBS, WARDEN*. C. A. 8th Cir. Certiorari before judgment denied.

No. 19–7375. *VALENCIA-TRUJILLO v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. JUSTICE KAGAN took no part in the consideration or decision of this petition. Reported below: 782 Fed. Appx. 895.

No. 19–7386. *DOWELL v. HUDGINS, WARDEN*. C. A. 10th Cir. Certiorari denied. JUSTICE GORSUCH took no part in the consideration or decision of this petition. Reported below: 793 Fed. Appx. 671.

No. 19–7412. *EMBRY v. UNITED STATES*. C. A. 6th Cir. Certiorari denied.

JUSTICE SOTOMAYOR, with whom JUSTICE GINSBURG joins, dissenting.

I dissent for the reasons set out in *Brown v. United States*, 586 U. S. 953 (2018) (SOTOMAYOR, J., dissenting from denial of certiorari).